

FOREWORD BY MARGARET B. DREW

Dear Readers,

I am pleased to write the foreword to the second edition of *From Madness to Mutiny*. I practiced family law for twenty-five years before transitioning to academia, where I continue my representation of abuse survivors. Most of my family law cases involved intimate partner abuse. During my academic career I have taught students to practice law in a clinical setting, where students provide counsel to survivors of intimate partner abuse. I teach courses related to intimate partner abuse, as well. My experience working with survivors of intimate partner abuse is significant. And my alarm over what has happened in the field, particularly over the past twenty years, is disconcerting.

Based on my experience, I recognize *From Madness to Mutiny* as an important book for those who prioritize child safety, particularly for children whose parents are involved with Family Court. Those who are abused come in all genders. The LGBTQ+ community, particularly transgender women, have high rates of intimate partner abuse. I do not doubt that allegations of parental alienation, where the abusive partner accuses the other of undermining the child's relationship with the abuser, is a tactic used in queer relationships, as well. Until recently in the course of legal history, courts have not entertained a significant number of child custody cases involving members of the queer community, and even fewer that have been appealed. As such, which tactics are used for certain to disparage the abused partner in queer relationships have not been widely reviewed. That field is ripe for study and analysis, although it is still in its incipience. This is why the reader will find that the case studies referenced in this present book focus on tactics used primarily by men to discredit women. Mothers are the primary targets of the

tactics of abusive men in custody cases. While men can be targets of unfair allegations in custody cases, the number of fathers experiencing targeted strategies of abuse and coercion in hetero relationships are a small minority.

Having been involved in the field of family law for over forty years, I have observed the backlash against women and other survivors after they made gains in protections against their abusers. These gains were primarily in the form of civil protections orders and legislation that limited the ability of someone with a history of domestic violence from being awarded custody of children. These gains were short lived. Not long after statutory protections for abused partners were implemented, angry men began organizing against women. The so-called Fathers' Rights groups, which organize against women, particularly mothers, are not to be confused with Responsible Fatherhood initiatives. Non-abusive, non-misogynist men do not pose concern. This book addresses the tactics used by men who abuse intimate partners and their children. These "Fathers' Rights" groups are well funded and well organized. Another reason these men and their tactics have been successful is because typically the abusive parent has access to more financial resources and is able to retain counsel and "experts."

Anti-victim tactics are successful in court because they are based on negative stereotypes of women. Prevailing attitudes toward women include the idea that women "lie," and, particularly, they lie about abuse. Moreover, women who say what abusers or others do not want to hear, are labeled some version of "crazy." The pathologization of women, particularly mothers, is common and unwarranted. Pathologizing women has a long history in our country where noncompliant women have been institutionalized. As you will read, alternatives to institutionalization are part of the current dismissal of women's narratives. For example, one threat made to mothers is that unless they comply with court ordered therapy (with a therapist of the court or of the father's choosing) they will not only lose custody of their children but will be denied all access to them.

The question most people ask when a family court places a child in the custody of an abusive parent is “how could this happen?” Therapists, attorneys, mothers, grandparents, media, and members of the public often ask the same question. As you will read in the case studies presented in this book, mothers often come to court with multiple medical records documenting spousal abuse and sexual abuse of their children by the father, only to have the court disregard or minimize the evidence. Survivors of violence expect to find relief with the court. Too often they find the opposite. Let me begin by giving my perspective on this tragedy which very much aligns with a major theme of this book. My perspective is anecdotal based upon my decades’ long practice of representing abused partners. These are my observations:

Many judges and other court personnel do not or cannot grasp how widespread intimate partner abuse and child sexual abuse is. They do not understand how widespread misogyny is either. In the United States, women and girls live in a culture where any man feels entitled to challenge them. Recently I was boarding an airline when I came to my row. As I proceeded to enter, an elderly White man, who occupied the row’s aisle seat, patronizingly asked me if I was sure I had the right row. I could not wait to see if he would ask the person who would occupy the middle seat the same question. He did not. That passenger was young and male. I was, of course, tempted to lean over and ask why he had not asked our seatmate the same question he directed toward me. But to do so would involve an innocent stranger in—literally—the middle of a dispute that would not change anyone. I relay this story to describe the everyday harassment of women when going about living their lives. Most cisgender men do not understand how pervasive misogyny is and the depth of its impact. These occurrences happen even more frequently with Black, Indigenous, and People of Color (BIPOC) women. Protective mothers (and/or their children) experience not only this “everyday misogyny” but abuse by their intimate partner. I wager that most protective mothers have experienced levels of domestic abuse—or their

children have—far beyond what most can imagine. When mothers approach the courts for relief, they do not realize that they have entered legal institutions that will be emotionally abusive toward them at an unexpected level. Courts are not a safe space for protective mothers.

If those with power are dismissive of the everyday slights women endure, then what are they thinking when confronted with a narrative describing abuse of children and mothers? Many judges may want to help abuse survivors; but they do not always see abuse in the cases before them. With little exposure to the dynamics of abuse, some judges cannot comprehend that parents can be so cruel. Some cannot imagine anyone abusing people they love, particularly children. Many judges do not understand that “love” is irrelevant to whether abuse has occurred. In short, “love” does not deter abuse. Many child sexual abusers have convinced themselves that their violations are out of “love” and therefore cannot be labeled abusive. Others know that their actions are harmful but feel entitled to their children’s bodies. Because crimes against children are too disturbing to consider, defenses of “I love my children; I would never hurt them” can be convincing. Judges may find it more comfortable to resort to stereotypes of hysterical and lying women than to acknowledge the abuse happening within the family. There are many well-intentioned judges who believe that they are making sound decisions and who, when confronted with the actual statistics of the rate at which they dismiss domestic violence narratives, find the statistics difficult to believe. If they ever had training, the training truly missed a critical component of not prejudging an abuse survivor.

Then there are others. A minority, but devastatingly effective, number of judges are misogynists. Changing them is not a matter of training. They are the judges who, for whatever reason, cannot attend a training or are skeptical of everything taught because “they know better.” “You don’t see what I see” is a common response. Judges of all genders ignore abuse, even child sexual abuse, with impunity. We do not, and will not, know how many judges are influenced by their own childhood experi-

ences. But we cannot linger on the “why” of biases against women and children and biases in favor of fathers. The intent or lack of it does not change the fact that mothers are being banned from seeing their children based upon the testimony of abusers and their so-called experts.

I have long been puzzled why judges refuse to accept the high likelihood that men who abuse their intimate partners will abuse their children. As a former judge likes to say, “if we knew there was a 50 percent chance that a bank would be robbed, the police would be all over it.” But where the chance of an abusive partner abusing a child is a *minimum* of 50 percent, institutional actors do not take any preventative action. That percentage goes even higher depending upon the frequency and type of abuse. Abusing children is a way of continuing to torture the children’s mother. A double-header in the world of abusers.

Then there are those judges who are abusive themselves. Barely listening to women in court, discounting their stories, verbally abusing them, and rejecting children’s narratives. For whatever reason, these judges reject the reality of children who are abused and instead order “reunification” therapy which continues the harm. Asking children to participate in the lives of the parent who hurts them is akin to telling those children that adults are not concerned about their disclosures, including their pleas for help. Compounding the harm, the non-abusive parent, who may be the one person that the children trust, is removed from contact with them.

From my experience as a family law practitioner, I have seen that sexual abuse of female children happens early on when fathers abuse their daughters. That is, even if there was no abuse prior to the parents’ separation, sexual abuse of daughters happens quite soon after separation. This is not to discount the sexual, and other, abuse of boys. If the abusive parent is not sexually abusing the boys per se, exposure to pornography or verbal abuse with disturbing messages on being “manly” are, nonetheless, common components of a father’s abuse of his male children. The depravity of sexual abuse of children seemingly

has no bottom. I have had a few cases where fathers of very young girls provided other men access to their daughters. Just imagine how courts would respond to these allegations, particularly if the basis of the allegations is solely the testimony of the child? Fortunately, my clients had sufficient evidence of abuse by the father to convince the judge to prohibit all access to the child without disclosing this additional information. Part of the evidence in one case included psychiatric reports from the daughter's repeated psychiatric hospitalizations. Practically speaking, had we addressed the additional facts of the father making the child sexually available to other men this could have been detrimental to our case. Even the sympathetic judge might view such information as going a step too far and reexamine the mother's reliability as a reporter. Fortunately for my clients, the judges who heard these cases were not skeptical of the mother's intentions. Importantly, those cases pre-dated the era where claims of parental alienation saturate every case involving protective mothers. Yet the dilemma remains the same: how much information to reveal in court; and the timing of such revelations is the purview of client and counsel and must be calculated strategically. This is no doubt an important topic for domestic abuse survivors and their advocates to discuss throughout the case. As you will read in the comprehensive case studies provided in this book, sometimes what is presented to the court is deemed wholly irrelevant if the judge is hostile to the mother.

Parental alienation arguments in all their forms (Parental Alienation Syndrome [PAS], Parental Alienation [PA], Resist and Refuse Dynamics [R-RD]) is pervasive in family court and often effective in grossly undermining a mother's claim of abuse. The mother is further punished with court orders assigning custody to the abuser and often loss of all visitation privileges with her child. As Neustein and Leshner discuss, Professor Joan S. Meier is a leading researcher who has debunked the so-called science behind "alienation." Although there is no question that some parents attempt to drive a wedge between their children and the other

parent, that behavior is different than the situations that are described in this book. However, when allegations of child abuse arise in a case where “alienation” is claimed by the alleged abuser, the court should focus on the domestic violence and child abuse claims, disregarding the alienation claims. Abuse and alienation do not happen simultaneously. Raising alienation claims against the non-abusive parent is part of a pattern of abuse and should be explored as such. Reputable psychologists and psychiatrists have debunked the fundamental notions of alienation. Significant science-based organizations do not accept it as a theory, let alone as a disorder. The authors of this book address this topic in depth.

Fundamentally, alienation claims depend upon two myths about women. As mentioned earlier, one is that women lie. The second is that women particularly lie about abuse. Not surprisingly, such stereotypes were created by men to protect themselves and other men. Nevertheless, it is important to remember that not all men are abusive. By far, abusive men are in the minority. But abusive men are good at what they do. They know, and are groomed in, how to disparage women and children and how to undermine their targets’ credibility. Overcoming stereotypes of “women scorned,” “women are crazy,” and “women lie” is not easy. These stereotypes are so embedded in our culture that ridding the public, as well as judges and other court staff, of these biases can be a slow and difficult process. We expect a higher level of understanding from judges, but often it is up to the protective mother to educate the judge. This is a complex process, particularly if one cannot afford an expert witness. Judges hear from abusers’ experts and guardians ad litem railing about the mother’s failures. Judges are not social scientists. Without experts for the protective mother, and an attorney who understands how to attack the father’s experts, judges will not have an adequate record on which to make an informed decision. This second edition of this book provides more information for judges and protective mothers and their advocates to understand abuse, and the biases that subject protective

mothers to further abuse through the legal process.

Finally, I must consider the failure of law schools to produce lawyers adequately prepared to advocate for protective mothers. Statistically we know that at least one in four cases handled by family law attorneys will involve abuse. I am not aware of any law school that requires courses in domestic abuse to be a pre or co-requisite to studying family law. Often family law casebooks have just one section devoted to the study of domestic violence. Without incorporating the study of abuse and its legal consequences, students graduate with an incomplete education for representing domestic abuse survivors and their children. This makes family law practitioners more vulnerable to believing allegations of alienation. As such they lack the tools to adequately defend the protective mother and may not have the energy to mount an aggressive defense because they believe alienation is real, even in cases where abuse has occurred. In essence, law schools are inadvertently setting up their graduates for incompetent representation of their clients in family cases. Malpractice alone should motivate family law attorneys and students to learn about the alienation smokescreen, the single most effective tool or strategy preventing protective mothers from keeping their children safe. This second edition provides comprehensive case studies of what happens in court to protective mothers. These narrative case histories need to be taught in law school. All things considered, this second edition of *From Madness to Mutiny* offers valuable information that attorneys for protective mothers need to know, and that law students need to learn.

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